



OFFICE OF THE NEW YORK STATE ATTORNEY GENERAL LETITIA JAMES

# The New York Voting Rights Act

*"Your vote is precious, almost sacred. It is the most powerful nonviolent tool we have to create a more perfect union."*

– U.S. REPRESENTATIVE JOHN R. LEWIS

*The John R. Lewis Voting Rights Act of New York (NYVRA) is a landmark law that advances voting rights and helps ensure free and fair elections for all New York voters.*

## How does the NYVRA protect the right to vote?

The NYVRA **prohibits practices** that harm New Yorkers' voting rights. These practices include:

- **voter suppression** (making it harder for voters to cast their ballots)
- **vote dilution** (weakening the voting power of a group, including through the system used to elect representatives)
- **voter obstruction** (such as interfering with voting or voters' access to the polls)
- **voter intimidation and deception** (such as threatening voters or giving them false information about voting or elections)

The NYVRA also **places new requirements** on local jurisdictions in New York, such as counties, cities, towns, villages, and school districts:

- Some local jurisdictions are subject to the new preclearance requirement described in the following section.
- Beginning June 20, 2025, some local jurisdictions are required to expand support for voters with limited English proficiency by providing language assistance. This support could include translating ballots and voter-registration materials.

## What is preclearance?

To help prevent harm to voters in New York communities with a history of violating voting or civil rights, arresting certain groups at higher rates, or having highly segregated neighborhoods, the NYVRA establishes a process known as preclearance.

Preclearance requires local officials to obtain preapproval from the Office of the New York State Attorney General (OAG) or a state court before they can make certain election and voting-related changes.

**Preclearance is important because it stops harmful policies from being put into practice before they affect voters.**

## How does preclearance work?

Under the NYVRA, certain local jurisdictions must request preclearance before making changes. These jurisdictions are known as "covered entities."



[View covered entities](#)

Before a covered entity can implement a change, like moving a poll site or limiting voting hours, it must submit a proposal to OAG (to get administrative preclearance) or a state court (to get judicial preclearance).



[View covered policies](#)

## How the administrative preclearance process works:



**1** A jurisdiction submits its proposed change to OAG. The proposal is published on the NYVRA Portal.



**2** The public has an opportunity to provide feedback on the proposed change. Individuals and groups can comment on how a proposed change will affect voting and elections in a specific community.



**3** The OAG reviews the submission and comments from the public. It determines if the proposed change is permitted under the NYVRA.



**4** The OAG publishes its determination.

*If OAG grants preclearance, the jurisdiction can make the change.*

*If OAG denies preclearance, the jurisdiction cannot make the change but may appeal the denial in state court.*

## How can I get involved?

We want to hear from you! Public comments on preclearance submissions give us important information about how a change could help or harm voters.

*Visit our NYVRA Portal to view submissions and make comments.*



**Visit NYVRA Portal**

*Learn more about the NYVRA.*



**Learn about NYVRA**

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**View voting resources**

**If you have any questions regarding preclearance, contact:**

**votingrights@ag.ny.gov**

Experiencing problems voting? Visit **ag.ny.gov/voter-complaint** or call **1-212-416-9818**.